

Amendment No. 1 to SB0705

White
Signature of Sponsor

AMEND Senate Bill No. 705

House Bill No. 676*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-50-1001(b)(2), is amended by deleting the subdivision and substituting the following:

(2) Subject to Section 3, determine the salary and terms of employment for employees of state special schools;

SECTION 2. Tennessee Code Annotated, Section 49-50-1001(c), is amended by deleting the language "For the purposes of this part" and substituting "As used in this part" and by adding the following as a new, appropriately designated subdivision:

() "Teacher":

(A) Unless the context requires otherwise, means a person licensed by the state board of education and employed at a state special school; and

(B) Does not include:

(i) The chief administrative officer of a state special school; and

(ii) Those who are considered state employees for leave

purposes under title 8, chapter 50, part 8.

SECTION 3. Tennessee Code Annotated, Section 49-50-1001, is amended by adding the following as a new, appropriately designated subsection:

() In managing and controlling the state special schools, the department of education must provide the following to the teachers of state special schools:

(1) Eligibility to accumulate and use leave in the same manner as public school teachers under chapter 5, part 7 of this title; and

(2) Eligibility for paid family leave in accordance with § 8-50-814.

SECTION 4. Tennessee Code Annotated, Section 49-50-1003(d), is amended by deleting "professional personnel" and substituting "licensed personnel".

SECTION 5. Tennessee Code Annotated, Section 49-50-1003, is amended by adding the following new subsections:

(e) Any percentage increase to the salary schedule of an LEA where a state special school is located must also result in an equivalent percentage increase to the salary schedule for that state special school.

(f) When the general assembly appropriates monies in the budget for salaries, raises, bonuses, or other incentives for public school teachers and other licensed personnel employed in an LEA or public charter school in this state, the department of education shall also obligate and expend appropriations in an equivalent amount for salaries, raises, bonuses, or other incentives for the teachers and other licensed personnel employed in the state special schools managed and controlled by the department of education. It is the legislative intent that the general assembly will appropriate monies in a sufficient amount to effectuate this subsection (f). The state is not prohibited from providing the teachers and other licensed personnel employed in the state special schools more than what is required by this part.

SECTION 6. This act takes effect July 1, 2025, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.